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# Executive Control and Legislative Success

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The higher legislative success of parliamentary governments relative to presidential governments has been used to argue that legislative success is driven by parliamentary governments' superior agenda power or their control of legislative majorities. We show that this approach is at odds with some of the empirical regularities across and within political systems. We then propose a legislative bargaining model to elucidate this puzzle. In the model, the policies of a confidence-dependent parliamentary government enjoy more predictable support from governing coalition members because their short-term policy goals are less important than the government's survival. Coalition support is stronger when the government has more agenda power and is weaker with a larger ruling coalition. We explore the empirical implications of these findings and their consequences for the comparative study of legislative institutions.

*Key words*: Presidential versus parliamentary government, Legislative success rates, Executive control, Legislative bargaining, Confidence requirement

*JEL Codes*: C72, D02, D72, H11

## 1. INTRODUCTION

The question of how constitutional features influence political behaviour and performance is central in the comparative study of governments. Among democratic political systems, understanding the differences between presidential and parliamentary constitutions has been a main focus of research (*e.g.* Shugart and Carey, 1992; Linz, 1994; Morgenstern and Nacif, 2002; Persson and Tabellini, 2003). To evaluate the different theories of how presidential and parliamentary democracies function, we need to assess their ability to account for important variations in observable behaviour.

Legislative success is one such observable outcome that is systematically different between parliamentarism and presidentialism. A *legislative success rate* is the frequency with which bills proposed or endorsed by the executive government are passed by the legislature in a given legislative session.[1]

1. We allow for endorsements in addition to formal proposals because the president may lack formal power of legislative initiative, for example, U.S., in which case he needs to propose bills through legislative agents. The yearly *Congressional Quarterly Almanac*, for instance, provides lists of legislative proposals "endorsed" by the current president.



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Parliamentary governments enjoy significantly higher success rates than presidential governments. Yet, well-known theories of parliamentary versus presidential systems are virtually silent on the issue of legislative success. Persson, Roland and Tabellini (1997, 2000) focus on differences in accountability and public spending patterns. Diermeier and Feddersen (1998) explain why coalitions in parliamentary systems are relatively stable across policy issues, compared to those in presidential systems. Linz (1994) emphasizes differences in the fluidity of transitions between consecutive governments and draws conclusions about the two systems' risk of democratic instability. Tsebelis (2002) makes observations about gridlock and interest group influence by studying differences in the set and distribution of veto players in the two systems.

Which features of parliamentary governments make them more successful in passing legislation? The existing literature (see, *e.g.* Saiegh, 2009) suggests that government legislative success originates either in its superior agenda power or in its control of a legislative majority, for instance, through disciplined partisan support. In this paper, we note that while cross-county data does seem consistent with these two hypotheses, within-country data mostly casts doubt on their robustness. We propose a model of presidential and parliamentary legislative bargaining that reconciles cross-system and within-system empirical patterns. The model sheds light on the institutional drivers of legislative success. We find that the *confidence requirement*, a defining feature of parliamentary governments, can explain differences in legislative success across systems, even after controlling for agenda power and majority control.[2] At the same time, our model demonstrates how in a dynamic setting agenda power and majority control are orthogonal to presidential success, and how, in contrast to the commonly held views, agenda power and majority control have opposing effects for parliamentary governments. These results corroborate observed data patterns.

The paper's contribution is 3-fold: (i) it provides new insights into the logic of parliamentarism and presidentialism by supplying a new comparative theory able to explain their legislative success rates, an outcome overlooked by previous theories of the two political systems; (ii) it provides arguments why the success rate is an imperfect proxy for executive agenda power or majority control; and (iii) it generates testable hypotheses beyond success rates, providing further guidance for empirical work in this area. More generally, our results suggest that sequential bargaining models provide a promising modelling framework for the comparative study of legislatures.

We start by reviewing empirical patterns of legislative success. In the process, we point out how some of these data challenge the robustness of the two existing explanations of success rates.

## 2. LEGISLATIVE SUCCESS OF PARLIAMENTARY AND PRESIDENTIAL GOVERNMENTS

The first motivating example is the comparison between the U.K. (parliamentary) and the U.S. (presidential) government. As can be seen in Figures 1 and 2, the Prime Minister's average legislative success rate in the U.K. over 1995–2003 was 94%, while the U.S. average from Eisenhower's first term to Bush 43rd's first term was only 68%. If attention is restricted to "substantial" legislation, the legislative success rate in the U.S. drops to 54% (Edwards, Barrett and Peake, 1997).

2. See Lijphart (1999). The confidence requirement in our model reflects its two facets present in parliamentary constitutions: first, the legislature can prevent the ruling coalition from governing (no-confidence vote) and second, the ruling coalition itself steps down if one of its major policy initiatives is defeated (confidence vote procedure).

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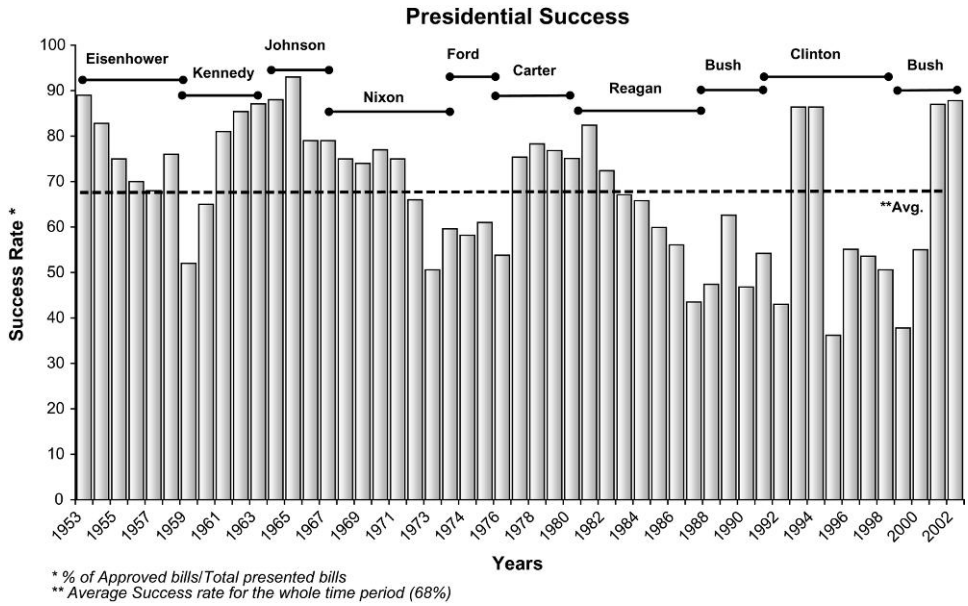


FIGURE 1
Legislative success rates in the U.S. 1953–2002 (Source: *Congressional Quarterly Almanacs*)

A natural inclination may be to attribute this gap to differences in party discipline. Yet, other data do not seem to support this explanation. In Figure 3, we add two more cases: Germany and Argentina. Both countries use essentially the same electoral system (closed-list proportional representation) and both countries exhibit very high levels of party discipline.[3] Yet, despite tight party discipline, Argentine governments' legislative success rates are low in fact even lower than in the U.S. The figure thus suggests that it might not be party systems *per se* (and the related measure of party discipline) that determine success rates of presidential and parliamentary governments.

This is confirmed by more comprehensive data analyses. Cheibub, Przeworski and Saiegh (2004) compare executive success rates in a large number of democratic governments—see Table 1—and find large and significant differences across political regimes (presidential vs. parliamentary) but not across party systems.[4]

How else can we explain these differences? Two hypotheses dominate thinking on this issue: agenda power and majority control. According to the *agenda power* view, parliamentary governments feature more centralization of agenda power in the cabinet, in some cases to the point of excluding non-cabinet legislators; a monopoly on agenda power will then naturally result in higher success rates since it is more difficult to introduce alternatives to the government's initiatives.[5] This view can be supported by observing the higher success of bills introduced by cabinet members relative to those introduced by private members or legislative parties (*e.g.* Andeweg and Nijzink, 1995, Mustapic, 2002).

3. See Jones (2002) for Argentina, Schindler (1994), and Saalfeld (2002) for Germany.

4. Although Cheibub, Przeworski and Saiegh (2004) do not directly control for electoral system type, they do report some indirect effects. For example, single-party governments (as would be typical for plurality rule systems) have higher legislative success rates than coalition governments in *both* presidential and parliamentary regimes.

5. For an assessment of agenda power in parliamentary democracies, see Döring (1995).

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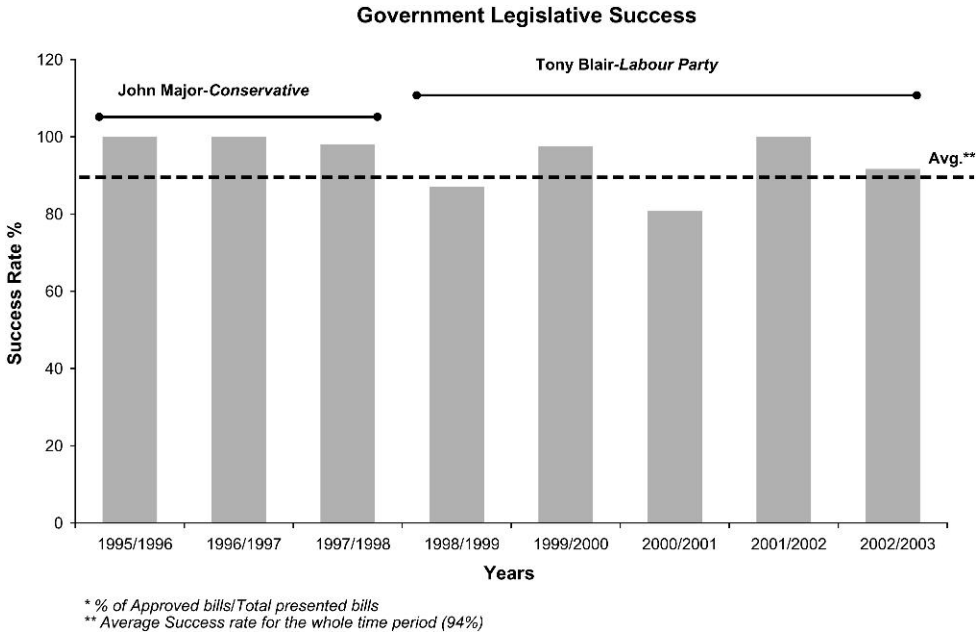


FIGURE 2
Legislative success rates in the U.K. 1995–2003 (Source: *Hansard Record*)

In presidential systems one can find cases, however, that are inconsistent with this intuition. In post-authoritarian Chile, for example, presidents have had the constitutional prerogative to introduce bills with urgency (*urgencia*), giving them priority consideration by the Chilean Congress and so considerably enhancing the president's agenda power. However, during the 1990–1993 Aylwin administration, when a total of 637 initiatives were introduced by the president, 375 of whom with urgency, success rates for the two types of bills were virtually the same (see Table 2).

According to the *majority control* view, parliamentary governments need to rely on the support of a majority at all times ("mutual dependence").[6] Presidential governments do not depend on a legislative majority to remain in power since they are elected independently from congress ("mutual independence"). Conceptually, assuming equal levels of party discipline, this institutional difference should affect legislative success only in cases where a president leads a minority government that lacks the support of the legislative majority—leading to gridlock and low success rates.[7] This executive–legislative relationship simply cannot occur under parliamentarism (Cheibub, Przeworski and Saiegh, 2004).

Evidence suggests, however, that majority control alone is not sufficient for legislative success either. For parliamentary systems, the majority control view is challenged by data presented by Cheibub, Przeworski and Saiegh (2004) that shows that success rates of small-majority governments is not smaller than success rates of large governing coalitions. In the U.S., this issue has

6. This majority may be implicit as in the case of minority cabinets. See Diermeier and Merlo (2000) for a formal analysis.

7. A related argument is formalized in a political agency model by Vlaicu (2009). There separated monitoring of executive and legislature—specific to presidential systems—causes policy gridlock, while hierarchical monitoring—specific to parliamentary systems—increases agreement between monitor (legislature) and decision maker (executive).

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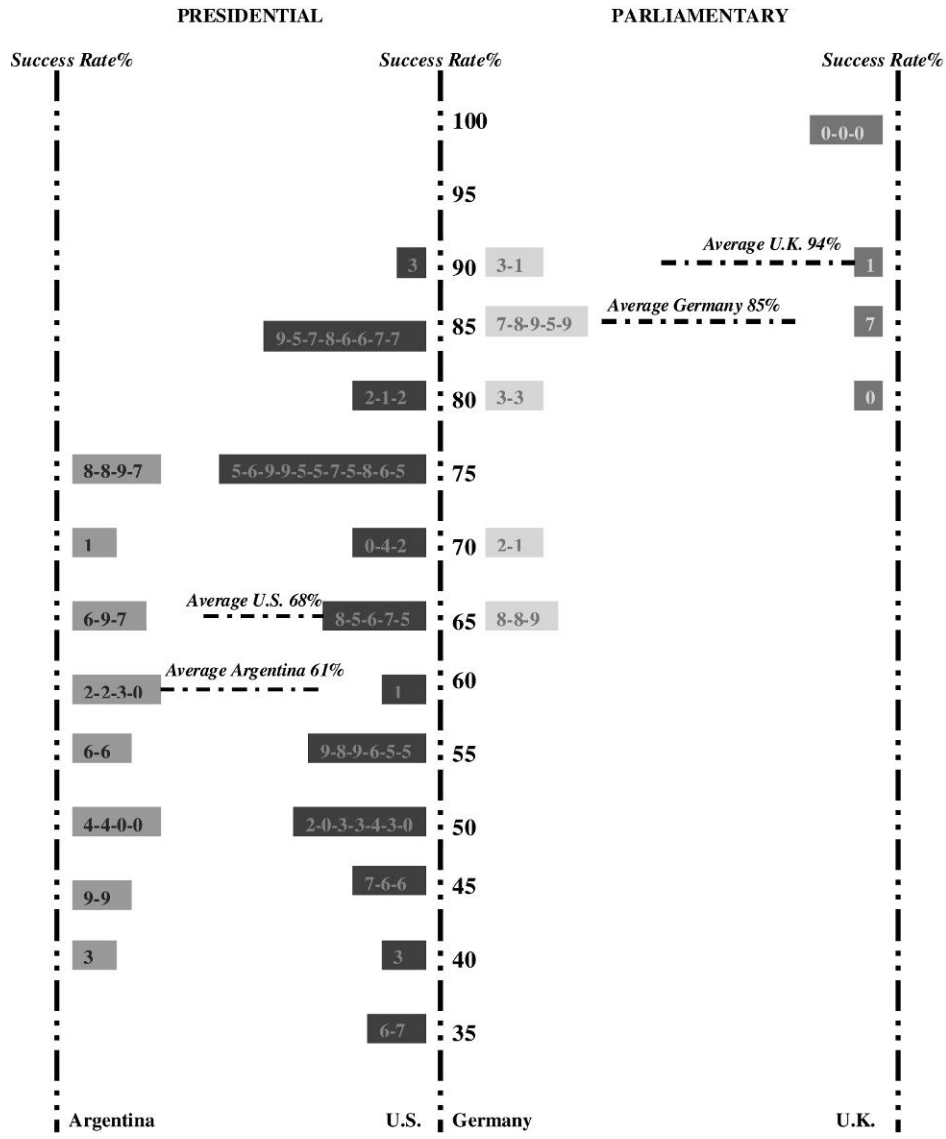


FIGURE 3

Legislative success rates for the executive in four Countries. Legend: The digits inside each bar indicate the values of all sample points in that range. For example, 8-8-9-7 in the 75–80 range for Argentina indicate sample points 78, 78, 79, and 77. (Sources: *Congressional Quarterly Almanac* [U.S.], *Hansard Record* [U.K.], Schindler (1994) [Germany], Molinelli et al. 1999 [Argentina])

been extensively discussed in the context of divided versus unified government. Until recently, conventional wisdom had suggested that a unified government—presidency and Congress controlled by the same party—would be far more successful in pushing through its agenda. Mayhew (1991), however, showed that this intuition is not borne out by data from the U.S. Congress. Controlling for other relevant variables, divided government has no significant effect on the amount

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TABLE 1
*Government legislative success rates, multi-country sample*

| | Parliamentary | Presidential |
|---|---|---|
| Mean success rate | 80·15 | 62·63 |
| (Standard error) | (13·92) | (20·30) |
| Observations | 335 | 214 |

*Source*: Based on Cheibub, Przeworski and Saiegh (2004)

of important legislation that is enacted. One possible explanation for this outcome might be a compensation effect: faced with a less like-minded legislative majority,[8] a strategic president might moderate his policy proposals in order to maintain a reasonable chance of changing the status quo.

Mayhew's findings, however, apply to the *number* of significant bills passed; is does not directly speak to the issue of legislative success, defined in this paper as the likelihood that a bill endorsed by the president passes. The latter case was analysed by Edwards, Barrett and Peake (1997). They construct a sample of significant bills considered by the U.S. Congress from 1974–1992 and identify those that were endorsed by the president.[9] These data are consistent with two of their testable hypotheses: first, the president supports equal amounts of legislation under divided government and unified government (as in Mayhew, 1991); second, divided government has little impact on the amount of administration-endorsed legislation that fails to pass. Controlling for start of term effects, budgetary situation and activist mood of Congress, they find that divided government actually *decreases* the number of failed president-endorsed bills, but this effect is small and not statistically significant.[10]

This does not seem to be just a U.S. phenomenon. In Mexico after President Zedillo party's (the Partido Revolucionario Institucional (PRI)) lost its majority in 1997, the president's legislative success rate dropped only marginally. This was despite the fact that the number of president-initiated bills fell by a factor of five (Nacif, 2002).[11]

Together these findings suggest that both hypotheses (agenda power and majority control) seem incomplete. Within countries over time legislative success rates simply do not correlate well with either government agenda power or government control of legislative coalitions. Where does this leave us? Our review of existing research yields the following findings:

1. There are significant and substantial differences in legislative success rates across systems. Parliamentary governments have consistently higher legislative success rates compared to presidential governments.

8. For instance, as a result of losing control of Congress in a midterm election.

9. The president's position was determined based on the *Congressional Quarterly*'s yearly *Almanacs*, *New York Times* commentaries, and presidential documents.

10. They justify this lack of effect of divided government on the president's legislative success by arguing that "the responsibilities and expectations of the modern presidency force the chief executive to support a wide range of policy proposals under *both* divided and unified government, providing ample opportunities for failure in both contexts," and "divided government is only one of the obstacles that legislation faces on the path of enactment." (Edwards, Barrett and Peake, 1997).

11. One explanation for these data, put forward by Nacif (2002), resonates with the compensation effect alluded to above: "Apparently, presidential response to the loss of the PRI's majority was institutionally induced self-restraint and accomodation. The chief executive refrained from initiating legislation when organizing multiparty coalitions was too costly. At the same time, the PRI allowed opposition parties to take greater part in law making in exchange for their cooperation in passing executive-initiated legislation." (p. 282)

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TABLE 2
*Legislative success rates compared, Chile 1990–1993*

| | With urgency (375) | Without urgency (262) |
|---|---|---|
| Success rate | 64% | 62·6% |

*Source*: Based on Siavelis (2002).

2. There is little evidence that executive agenda power or loyal legislative majorities affect the executive's legislative success within presidential systems or parliamentary systems.

In this paper, we argue that differences in legislative success rates are fundamentally consequences of differences in legislative uncertainty, not executive power. In current presidential versus parliamentary models, built around a perfectly informed agenda setter, legislative success would always be guaranteed because the setter will simply adjust his proposal to the point where it just buys off the cheapest majority. The challenge is to develop a model where legislative uncertainty varies with the institutional environment (presidential vs. parliamentary constitutions) while holding constant the executive's proposal power and the legislature's policy preferences.

This paper proposes such a model. It builds on the dynamic bargaining approach that was introduced by Diermeier and Feddersen (1998). Focusing on the composition of legislative coalitions, their model is not equipped to study success rates because the agenda setter can perfectly observe legislative preferences. The issue at stake there is which legislators get coopted in policy coalitions.[12] Our generalization allows for *uncertainty* about legislators' preferences. This creates a trade-off between the setter's policy rent and his chance of gathering sufficient votes. We also model variation in ruling coalition size to study the effect of majority control on legislative success.[13]

Studying how institutions resolve voting uncertainty sheds light on the nature of legislative bargaining under presidentialism and parliamentarism. In a presidential system, the government's legislative record does not affect its tenure since both the government and the legislature have fixed terms ("mutual independence"). Agenda setters then have short-term, issue by issue, policy incentives since there are no long-term consequences of legislative defeats. Because of uncertainty about legislators' preferences, the legislators that support the government's policy (the policy coalition) today may differ from the policy coalition tomorrow. Majority support is then a risky proposition. More executive control need not alleviate this risk. In fact, whether the government has more agenda power or a larger legislative coalition does not affect its success rate, since the agenda setters' incentives are static, based on the policy issue at hand.

In a parliamentary system, on the other hand, the legislative process reduces the uncertainty about both the composition of policy coalitions and the extent of their support. We find that this is due to government dependence on legislative confidence. This institution has two effects, one on ruling coalition members and the other on agenda setters. First, ruling coalition members have a vested interest in the government's legislative success since their policy rents keep flowing as long as their coalition stays in power. Second, since ruling coalition partners are more likely

12. This framework has been applied in other models: government formation and stability (Baron, 1998) and comparative public finance (Persson, Roland and Tabellini, 2000).

13. In the Diermeier–Feddersen model, ruling coalitions are determined in equilibrium and are always minimal winning. Our model is not intended to explain the formation of these different ruling coalition types. This a notoriously difficult problem—see Baron (1998) and Diermeier and Merlo (2000) for models of government formation. Rather, we are interested in the effect of coalition size on legislative success.

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to support the government, agenda setters find them cheaper to buy off with policy benefits. This raises the value of coalition membership even further. Put together, these two effects create a symbiotic, mutually advantageous, relationship between agenda setters and ruling coalition members.

The higher the value of ruling coalition membership the lower the government's uncertainty about their legislative support, and the higher the government's legislative success rate. We find that under parliamentarism, the value of belonging to the ruling coalition does depend on the government's power: more agenda power multiplies the policy rents that coalition members extract from the opposition; a larger ruling coalition, however, spreads out the rents over more coalition partners, decreasing the stake of each individual member, and with it their support.

These institutional effects elucidate the above empirical puzzle by revealing how agenda power and majority control function differently within each system. They also produce new testable predictions. We characterize differences in the trend and variance of legislative success between systems. The model can also rationalize the preponderance of targeted transfers ("pork") in presidential systems (cf. Persson and Tabellini, 2003). Finally, we can also account for the difference in success rates among the two legislative procedures used in the German Parliament. After formally describing the model and analysing its equilibrium outcomes, we discuss these implications in more detail. This is followed by a brief conclusion.

## 3. THE MODEL

Consider a legislature composed of $n+1$ legislators, where $n$ is even and $n \geq 2$. The legislature is elected in period $T$ and meets in periods $T-1, T-2, \ldots, 1$ to make policy; this finite sequence of periods is called a *legislative session*.[14] In every policy period $t \in \{T-1, T-2, \ldots, 1\}$, the policy issue is an allocation $\mathbf{s}_t = (s_t^1, s_t^2, \ldots, s_t^{n+1})$ of one dollar among the legislators, where $\sum_{j=1}^{n+1} s_t^j = 1$ and $s_t^j \geq 0$ for all $j$ and $t$.

### 3.1. *Preferences*

Each legislator has self-interested risk-neutral preferences—he cares only about his own share of the dollar:

$$u_j(\mathbf{s}_t) = s_t^j, \quad \text{for all } j = 1, 2, \ldots, n+1. \tag{3.1}$$

Decision making in a policy period has the following structure: (i) an agenda setter proposes a bill $\mathbf{b}_t$; (ii) if a majority of legislators approves the proposal, that allocation is implemented; (iii) otherwise, a random reversion allocation $\mathbf{X}_t = (X_t^1, X_t^2, \ldots, X_t^{n+1})$ is implemented, where $\sum_{j=1}^{n+1} X_t^j = 1$ and $X_t^j \geq 0$ for all $j$ and $t$. Thus,

$$\mathbf{s}_t = \begin{cases} \mathbf{b}_t & \text{if } \frac{n}{2}+1 \text{ or more vote in favour,} \\ \mathbf{X}_t & \text{if } \frac{n}{2} \text{ or less vote in favour.} \end{cases} \tag{3.2}$$

Over time reversion allocations are i.i.d. draws from a probability distribution with full support over the simplex $\Delta^n$.[15] Each legislator observes his own reversion value but cannot observe

14. Periods are numbered in reverse order because the equilibrum is found through mathematical induction on the number of periods $t$ left in the game.

15. By full support, we mean that every point in $\Delta^n = \left\{\mathbf{x} = (x^1, x^2, \ldots, x^{n+1}) | \sum_{j=1}^{n+1} x^j = 1 \text{ and } x^j \geq 0 \text{ for all } j\right\}$ has the property that all its open neighbourhoods, however small, have positive probability measure. The role of this assumption is to create a benchmark where the agenda setter's degree of uncertainty about legislative preferences is all-encompassing.

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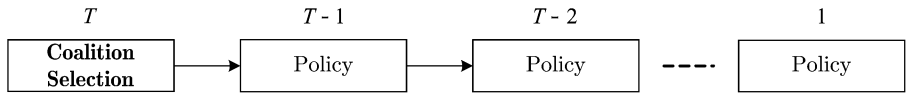


FIGURE 4
Presidential legislative protocol

others' reversion values. The random reversion point captures the agenda setter's uncertainty over how much support he can count on for a given piece of legislation.[16] The time-independence assumption means that policy issues arise exogenously.[17]

This policy environment can be interpreted in two ways. First, the policy issues tackled by this legislature are distributional, and the agenda setter is simply uncertain about other legislators' preferences. Second, the model could also capture legislating over spatial issues, with known ideal point orderings, but uncertainty over the relative support for a given piece of legislation. The bill $\mathbf{b}_t$ then serves as side payments, or pork, to shore up support for that piece of legislation.

While distributional considerations are common in legislative politics, the practical motivation for assuming this particular type of political conflict is symmetry. We need an environment with perfect symmetry so we can effectively argue that outcomes are driven by legislative institutions rather than by arbitrary patterns of preference affinities. In a purely spatial set-up (say, unidimensional), the effect of legislative institutions would have to be disentangled from the effect of policy preferences. We assume symmetry not only in preferences but also in reversion allocations and tie-breaking rules.

**Assumption 1** ***(Symmetry in reversion allocations).*** *The reversion allocation $\mathbf{X}_t$ is drawn each period from a symmetric probability distribution over the simplex $\Delta^n$. By symmetry, we understand that for any measurable subset $\mathcal{X}$ of $\Delta^n$ and any permutation $\varphi(\cdot)$ of the components of vector $\mathbf{X}_t$:*

$$\mathbb{P}\{\mathbf{X}_t \in \mathcal{X}\} = \mathbb{P}\{\varphi(\mathbf{X}_t) \in \mathcal{X}\}. \tag{3.3}$$

**Assumption 2** ***(Symmetry in tie-breaking rules).*** *If an agenda setter is indifferent among several possible proposals, he will choose one of these randomly, i.e. without systematically favoring a particular group of legislators.*

### 3.2. *Timing*

The game is played according to one of two legislative protocols: presidential and parliamentary. These are described graphically in Figures 4 and 5.[18] Both games start in period $T$ with an organizational period when nature picks a ruling coalition $G \subseteq N$; the size of the *ruling coalition* is denoted by $c$, where $1 \leq c \leq n+1$. Ruling coalition membership comes with agenda power.

16. Saiegh (2009) exploits a similar source of legislative uncertainty, namely, the existence of "cross-pressured legislators" that may be swayed away from the party line.

17. We do not model the strategic choice of issues in order to keep the focus on how legislative institutions differentially solve a given policy conflict.

18. We choose a finite horizon over an infinite horizon for two reasons. First, a multi-period finite horizon is sufficient to generate the dynamic effects on payoffs that drive our results. Second, we want to study the effect of the electoral horizon on legislative success, which would be impossible in a stationary infinite horizon model where each period looks the same as the next.

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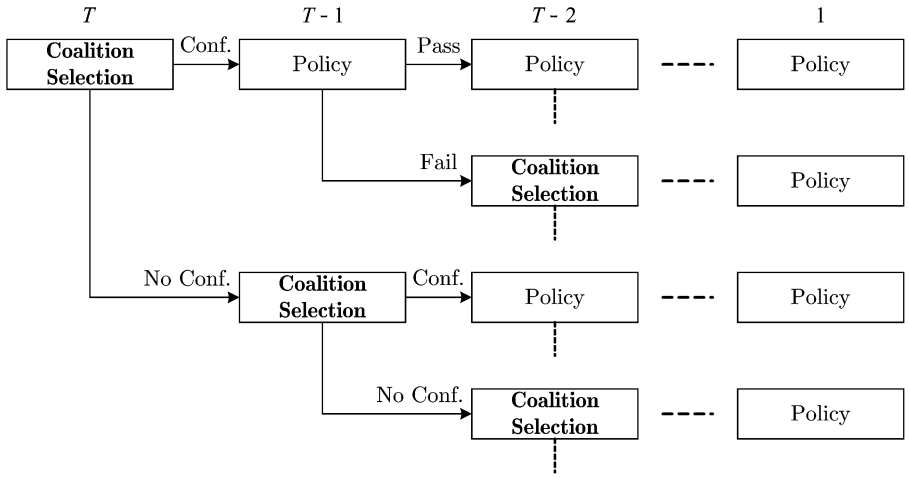


FIGURE 5
Parliamentary legislative protocol

Specifically, every ruling coalition member is recognized to be the agenda setter with equal probability $\frac{1}{c}$. The ruling coalition is also referred to as the "government."

We study two legislative protocols. In a presidential system (Figure 4) the ruling coalition is independent of the legislature. Thus, after a ruling coalition is selected at time $T$ all subsequent periods $T-1, T-2, \ldots, 1$ are policy periods where the ruling coalition exerts agenda power. Note that the ruling coalition can be either a minority (if $1 \leq c \leq \frac{n}{2}$) or a majority (if $\frac{n}{2}+1 \leq c \leq n+1$).[19]

In a parliamentary system (Figure 5), the ruling coalition is continuously dependent on the legislature's confidence. Thus, after the initial period-$T$ organization, there is a majority-rule vote on whether the selected ruling coalition can govern. *If* the ruling coalition wins the confidence of the legislature, it gains the right to exert agenda power. It maintains its agenda power until it suffers a legislative defeat. If a defeat occurs, the next period, a reorganization takes place; nature picks a new ruling coalition and the legislature immediately votes on whether this coalition can govern.[20]

How costly is it to spend legislative periods on selecting a ruling coalition? We assume that in organizational periods, legislators get a random allocation $\mathbf{X}_t$ with the same distribution as the reversion allocations in policy periods. Thus, each of them expects an equal share of the dollar. This means that in the parliamentary system, legislators who benefit from the current government lose out from its defeat, whereas those that are worse off with the current government could cut their losses immediately if they could just garner the votes to defeat it.[21]

Note that the model does not assume that parliamentary governments have more agenda power or wield larger majorities, as currently hypothesized in the empirical literature. This

19. A minority coalition can result when the president's party either lost general elections (split-ticket) or midterm elections (leading to "divided government") or has won the most seats, but not a majority of seats, and yet has decided to govern alone.

20. For models of government reorganization in parliamentary systems see Diermeier and Stevenson (1999, 2000).

21. In a previous version of the paper, we solved a model where no pay-offs are earned in election periods. This makes it costlier for *everyone* to bring down the government. The qualitative features of the equilibrium remain the same.

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allows us to check if the confidence requirement has an *independent* effect on legislative success, *i.e.* while controlling for agenda power and majority size. In other words, we try to identify an additional channel from political system to legislative success that does not work through agenda power or majority size. Once this channel is characterized, we vary agenda power and majority control and study how their magnitudes change the effect of the political system on legislative success. These comparative statics exercises should help illuminate the apparent inconsistency between cross-system and within-system data patterns.

## 4. EQUILIBRIUM LEGISLATIVE SUCCESS

Equilibrium behaviour in this model helps us to understand how legislative institutions (confidence requirement, agenda power, and ruling coalition size) affect legislative success. In our set-up, legislative institutions affect legislative success by shaping the interplay between legislators' policy and political incentives. Policy incentives reflect legislators' static (short-term) concern with their current pay-offs. Political incentives reflect legislators' recognition that membership in the ruling coalition is a source of long-term benefits. As we will see, these two types of incentives may be in conflict with one another. We first characterize policy incentives by analysing equilibrium behaviour in a single policy period. We then study behaviour over multiple periods to capture the long-term dimension of incentives. Our equilibrium concept is subgame perfect equilibrium. All proofs of the formal propositions are presented in the appendix.

### 4.1. *Policy incentives*

Consider one policy issue for which the agenda setter is legislator $i$. What should the agenda setter propose given his uncertainty about his legislative support? The setter knows how much legislators' support costs in aggregate $(1-x^i)$ but does not know how much individual legislators need to be compensated. But he can at least predict that legislator $j$ will support a proposed allocation $\mathbf{b}$ if and only if $b^j \geq X^j$. In equilibrium, the agenda setter makes a proposal that maximizes his expected pay-off:

$$\hat{\mathbf{b}}(x^i) = \arg\max[b^i \mathbb{P}\{S|X^i = x^i\} + x^i(1-\mathbb{P}\{S|X^i = x^i\})], \tag{4.4}$$

where success $S$ is the event that a majority supports the proposal: $S = \bigcup_{P\subset N}\bigcap_{j\in P}\{b^j \geq X^j\}$, where $P$ is a subset of at least $\frac{n}{2}$ legislators other than the agenda setter. The subset of legislators that end up supporting the bill is the *policy coalition*. Note that it is determined endogenously.

The following proposition characterizes the equilibrium proposal $\hat{\mathbf{b}}$ and its success probability, denoted $\hat{\sigma}(x^i) = \mathbb{P}\{\hat{S}|X^i = x^i\}$. Also, denote by $\hat{\sigma} = \mathbb{E}[\hat{\sigma}(X^i)]$ the expected success probability before the policy issue arises. The proposition states that in equilibrium, the agenda setter chooses to exploit his agenda power to extract a rent over his reversion value $x^i$ by tolerating a positive chance of legislative failure. This makes agenda power valuable: the expected pay-off of an agenda setter, even before a policy issue arises, denoted $\pi^i$, is better than average, while the expected pay-off of an ordinary legislator $\pi^j$ is below average.

**Proposition 1.** *When only policy considerations are factored in, equilibrium legislative outcomes have the following properties:*

(i) *The agenda setter extracts a rent over his reversion value:*

$$\hat{b}^i(x^i) > x^i \quad (= x^i \textit{ iff } x^i = 1). \tag{4.5}$$

*The agenda setter's expected pay-off is above average; an ordinary legislator's expected pay-off is below average:* $\pi^j < \frac{1}{n+1} < \pi^i$.

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(ii) *Legislative success is uncertain if the setter does not already have the support of the legislature:*

$$0 < \hat{\sigma}(x^i) < 1 \quad (= 1 \textit{ iff } x^i = 1). \tag{4.6}$$

*Legislative success across issues (the legislative success "rate") is interior:* $0 < \hat{\sigma} < 1$.

The logic of this result is straightforward. The agenda setter can guarantee himself $x^i$ by proposing a bill where he gets $b^i = x^i$. If the bill is successful he gets $x^i$, if not he still gets $x^i$. Can he do better? He could try to raise his share while maintaining a positive chance that his bill will pass. As long as uncertainty is sufficiently encompassing (full support), this strategy raises his expected pay-offs above average. Only in the unlikely case that the rest of the legislature is behind the agenda setter even without compensation ($x^i = 1$), the distributional conflict disappears, and legislative success is no longer an issue.

In short, this proposition claims that the agenda setter's policy incentives create an expected pay-off gap between the agenda setter and ordinary legislators, *as well as* uncertainty about the final legislative outcome. How are policy pay-offs and legislative uncertainty affected by legislative institutions? Answering this question requires a dynamic setting where policy (short-term) incentives interact with political (long-term) incentives.

### 4.2. *Presidential government*

Presidential systems are defined by the "mutual independence" of the legislature and the executive. This means two things. First, the president can start governing with a legislative coalition that may or may not have a majority of seats in congress. In fact, Cheibub, Przeworski and Saiegh (2004) report that only 59·7% of presidential governing coalitions in their multi-country multi-year sample are majoritarian. Second, the government is not accountable to a majority in congress and can govern until the next scheduled elections without majority legislative support, regardless of his legislative performance.

These institutional rules shape the dynamics of policy making. The key properties of equilibrium are stated in the following proposition.

**Proposition 2.** *In the presidential game with ruling coalition size c, where* $1 \leq c \leq n+1$, *equilibrium has the following properties:*

(i) *Policy coalitions change from issue to issue.*
(ii) *Legislative success is uncertain every period, varies from issue to issue, and is independent across issues.*
*Over the entire legislative session, the government's legislative success rate is interior:*

$$\frac{1}{T-1}\sum_{t=1}^{T-1}\hat{\sigma}_t = \hat{\sigma} \in (0,1). \tag{4.7}$$

The key to understanding presidential legislative performance is to focus on the incentives of the agenda setters and ordinary legislators. In any given policy period, an ordinary legislator votes for the agenda setter's proposal based on his short-term interests because a failed bill does not change the balance of political power in the legislature—the same ruling coalition will make policy in all future periods. Thus, by symmetry, the agenda setter is indifferent between making offers to ruling coalition and opposition members. Since his own future expected pay-offs also do not depend on the fate of the current bill, his proposal will depend only on current period pay-offs. Policy coalitions, therefore, have uncertain composition, can be majoritarian or super-majoritarian and may or may not overlap with the ruling coalition.

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In other words, legislative behaviour every period is driven by short-term policy incentives, the same ones we characterized in Proposition 1. Legislative success remains uncertain every period and depends on the overall level of support in that particular period, as captured by the agenda setter's reversion value $x_t^i$. The overall legislative success *rate* remains at its short-term level since $\hat{\sigma}_t = \hat{\sigma}$ for all $t$.

How is legislative success affected by an increase in the government's agenda power or in the size of the ruling coalition? The effect of agenda power can be identified by looking at a slight modification of the model. Suppose that each of the $T-1$ policy periods can be of two types: government-controlled agenda and open agenda. When the government sets the agenda, only members of the ruling coalition are recognized to make proposals. If the agenda is open, any legislator can be recognized. It is immediately apparent that this variation in the government's agenda power has no effect on the government's legislative success rate. In either case, policy making is based on issue-by-issue incentives. The same holds true for variations in ruling coalition size. Whether the government is a minority coalition ($1 \leq c \leq \frac{n}{2}$) or a majority coalition ($\frac{n}{2}+1 \leq c \leq n+1$) has no impact on its legislative success rate. These observations are summarized in the following proposition.

**Proposition 3.** *In the presidential game, variation in agenda power or ruling coalition size have no effect on the government's legislative success rate.*

This result is consistent with the above-mentioned findings that within presidential countries, one cannot empirically reject the hypothesis that agenda power and majority control are irrelevant for government legislative success. We further discuss this issue below, after we derive corresponding results for parliamentary governments.

### 4.3. *Parliamentary government*

Parliamentary systems are defined by a relation of "mutual dependence" between the legislature and the executive. The government's ruling coalition survives as long as it maintains the *confidence* of the legislature. Confidence manifests itself in two ways. In the first place, the ruling coalition has to be approved by parliament (by avoiding a no-confidence motion). Second, during the course of a legislative session, the ruling coalition itself can commit to step down if it suffers a legislative defeat (by invoking a confidence vote procedure).

It might seem that because of its more hazardous position, the ruling coalition in a parliamentary system would be more "careful" in proposing legislation, to avoid a legislative defeat (Heller, 2001). This intuition is only partially correct. In fact, we show that the government need not compromise on its policy goals in order to maximize its legislative success.

It has long been noted that the confidence vote procedure—the second facet of the confidence requirement—enhances the bargaining power of the prime minister vis-a-vis his ruling coalition. The threat of coalition break-up causes the coalition to stick together.[22] Thus, the government prefers to commit to seek confidence in order to exploit this strategic advantage.[23] The confidence vote procedure has been shown to create coalitional cohesion. We show how it creates legislative success as well.

22. A formalization of this argument is in Diermeier and Feddersen (1998) who apply the logic of legislative confidence to the comparative study of coalitional voting cohesion.

23. In most parliamentary systems, this commitment is mutually understood even if the procedure is not actually invoked. As Cheibub, Przeworski and Saiegh (2004) document, there have been a few parliamentary governments where there was a "slack" between defeating the government on a particular issue and voting it out of office. However, these cases are exceptions to the rule. See that article for specific examples.

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**Proposition 4.** *In the parliamentary game, equilibrium has the following properties:*

(i) *Only majority coalitions are allowed to govern:* $\hat{c} \geq \frac{n}{2} + 1$.
(ii) *Policy coalitions form around the ruling coalition in all periods except the last.*
(iii) *Expected legislative success* $\hat{\sigma}_t$ *is higher at the beginning of a long legislative session and declines towards* $\hat{\sigma}$ *as the legislative session approaches its end.*

The equilibrium outcome under parliamentarism differs sharply from the one under presidentialism. The root cause is the difference in long-term incentives. In a parliamentary system, the failure of a bill has not only policy but also political consequences. In terms of policy, a failed bill means lost policy benefits for the agenda setter, just like under presidentialism. Politically, however, a failed bill brings down the ruling coalition. This affects the future pay-offs of all legislators.

Consequently, in every policy period, future expected pay-offs play a large role. To measure this dynamic factor, we define the concept of a *net continuation value (NCV)*: the difference in future expected pay-offs between a legislative success and a legislative failure:

$$\Delta_t^j = V_t^j(S_t) - \frac{t-1}{n+1}, \tag{4.8}$$

where $V_t^j(S_t)$ is the sum of expected pay-offs if the current ruling coalition is successful at $t$. Intuitively, a legislator's NCV measures his long-term benefit from supporting the current government.

NCVs are a zero-sum concept. If some legislators benefit from the ruling coalition, the rest must lose: $\sum_{j=1}^{n+1} \Delta_t^j = 0$. For this reason, a ruling coalition that does not have a majority of seats cannot gain a mandate to govern, unless being part of the ruling coalition is detrimental. In our set-up that cannot be the case because agenda power is valuable (by Proposition 1).

Part (ii) of Proposition 4 reveals how the political incentives created by the confidence requirement affect the formation of policy coalitions. Ruling coalition members vote together, as members of a disciplined party would,[24] whereas the opposition votes against the government.

Parts (ii) and (iii) of Proposition 4 follow from two observations. First, NCVs of ruling coalition members are larger than opposition members'. Moreover, they increase in the length of the legislative session, while the opposition's decrease. This is because ruling coalition members have more time to extract policy benefits from the minority opposition. Second, equilibrium legislative success strictly increases in government members' NCV, when this is large enough: $\frac{\partial}{\partial \Delta^G}\hat{\sigma}(x, \Delta^G) > 0$ for large $\Delta^G$.

To illustrate the first claim, Figure 6 plots the sequences of NCVs for the special case of three legislators and uniform uncertainty.[25] In this example, six periods before the end of the legislative session legislative success is guaranteed, and, not shown in the picture, nine periods before the end of the game, a ruling coalition member supports the government unconditionally, purely on political grounds: ${\Delta_t}^G > 1$ for $t \geq 9$. In this example, the corresponding NCV's for the presidential system are $\Delta^G = 1/24$ for each of the two government members and $\Delta^O = -1/12$ for the opposition member. The expected legislative success rate under presidentialism is $\hat{\sigma} = 1/2$ every period.

24. Athough this disciplined behaviour is not based on "pressure" from party leaders, as is usually conjectured in the literature (Cox and McCubbins, 1993, Aldrich and Rohde, 2001). A better term is probably "voting cohesion." See Diermeier and Vlaicu (2009) for a spatial bargaining model of party influence based on the pursuit of common policy goals rather than leaders' pressure.

25. The fully worked out example is available as Supplementary Material at the journal's website.

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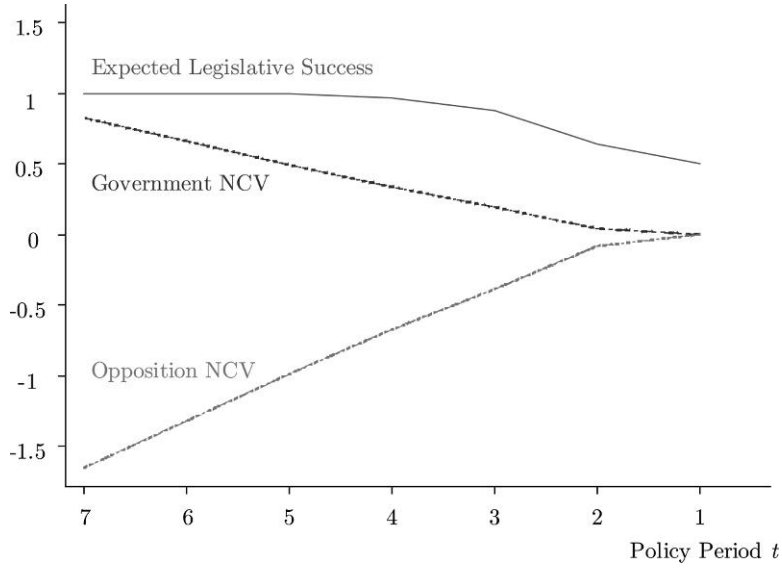


FIGURE 6
The dynamics of legislative success under the confidence requirement

The logic of the second claim—success strictly increasing in government NCVs—is as follows. An increase in majority support $\Delta^{\mathrm{G}}$ has two effects. The direct effect is that it improves the prospects for success of a given bill since ruling coalition members stand to lose more long term from a legislative failure and so are now "cheaper" to bring on board. The indirect effect is that the setter may choose to be opportunistic and "cash in" some of this windfall support by retaining more benefits $b_t^i$ for himself and thus reducing success. Overall, the effect on success can be nil. However, as the agenda setter's NCV becomes larger success becomes increasingly important because of the large advantage of staying in the ruling coalition in the future. In other words, long-term political incentives start to dominate short-term policy incentives, and the executive optimally pursues higher success.

Technically, this second claim rests on two assumptions.

**Assumption 3** *More majority support does not decrease equilibrium legislative success:*

$$\frac{\partial}{\partial \Delta^{\mathrm{G}}} \hat{\sigma}(x, \Delta^{\mathrm{G}}) \geq 0, \tag{4.9}$$

*where $\Delta^{\mathrm{G}}$ is the NCV of a ruling coalition member.*

This assumption requires that when faced with an increase in majority support, the agenda setter does not want to reduce his offers to such an extent that it reduces the bill's prospects of passage. Whether this assumption holds ultimately depends on the properties of the underlying uncertainty: the probability distribution of reversion allocations has to be sufficiently flat.[26] This weak condition on the agenda setter's equilibrium response to increased support ensures that government NCVs keep growing over time. When this happens success (holding on to a

26. In the Supplementary Material available at the journal's website, we show that the uniform distribution is one probability distribution that carries this property.

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higher and higher NCV) becomes relatively more important to the agenda setter than short-term benefits, and the agenda setter pursues strictly higher legislative success $\frac{\partial}{\partial \Delta^G}\hat{\sigma}(x, \Delta^G) > 0$ for large $\Delta^G$. Thus, Assumption 3 helps create a positive correlation between government NCV and legislative success (see Figure 6).

The other assumption is a tie-breaking condition. If the ruling coalition is a minority that does not have enough resources to bring some of the majority opposition on board, then the majority opposition is indifferent between allowing it to govern (and defeating it next period) and withholding confidence now.

**Assumption 4** *If a minority ruling coalition is expected to be ineffective (i.e. zero legislative success), it will not be allowed to govern.*

Finally, we can ask how legislative success is affected by an increase in the government's agenda power or in the size of the ruling coalition. The following result answers those questions.

**Proposition 5.** *In the parliamentary game:*

(i) *More agenda power leads to higher legislative success.*
(ii) *Larger ruling coalitions have lower legislative success rates.*

Part (i) of the proposition follows directly from the strict monotonicity of government NCVs over time. Increasing agenda power by increasing the number of periods when the government monopolizes, the agenda increases government members' NCVs, and with it the equilibrium success probability. In part two of the corollary, a larger ruling coalition leads to a reduction in the NCVs of government members since policy advantages have to be shared among more members. Lower NCVs then lead to less legislative success.

### 4.4. *Agenda power and majority control revisited*

The previous two subsections have established a positive effect of parliamentarism's confidence requirement on government legislative success. At the same time, we showed how agenda and coalitional considerations influence the confidence effect. How does this relate to the "agenda power" and "majority control" views of legislative success? Can they serve as empirical proxies for legislative success?

The agenda power and majority control hypotheses are summarized in Figure 7. Their claim is that parliamentarism leads to more government control of both the agenda and of legislative majorities, which in turn enhance the government's legislative success.

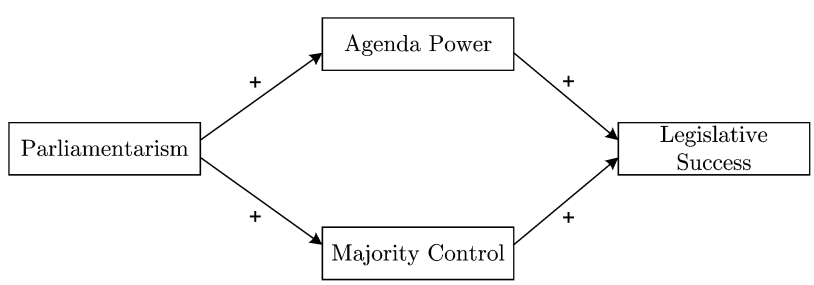


FIGURE 7
Existing empirical hypotheses

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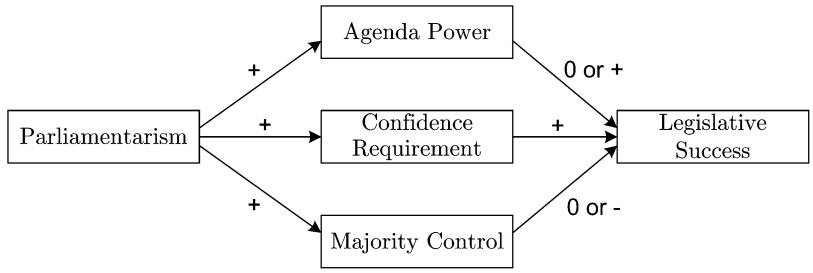


FIGURE 8
Our model's predictions.

Our results qualify these two hypotheses in three ways. First, we argue that there is an additional channel for the effect of political system on legislative success, namely, the confidence requirement. Second, we claim that the way the agenda power and majority control channels work depend on the type of political system. Third, we found that the effects of those two institutional variables may have signs different than those hypothesized in the empirical literature. Our findings are summarized in Figure 8.

We first state our main result establishing a causal relationship between political system and legislative success.

**Proposition 6.** *The government's legislative success rate is higher under parliamentarism than under presidentialism, for equal levels of agenda power and majority control.*

In presidential systems, our model predicts no effects of agenda power or majority control (Proposition 3). In parliamentary systems, the model predicts a positive effect of agenda power (consistent with the results on private member bills in Andeweg and Nijzink, 1995 and Mustapic, 2002, mentioned in Section 1) and a negative effect of majority control (Proposition 5). Overall, the causal effects we uncover theoretically are consistent with the puzzling empirical facts summarized earlier, namely, significant cross-system effects (Cheibub, Przeworski and Saiegh, 2004) but insignificant within-system effects (Edwards, Barrett and Peake, 1997, Nacif, 2002, Siavelis, 2002, Cheibub, Przeworski and Saiegh, 2004).

These results can guide future empirical studies of legislative success. In particular, our model suggests that the confidence requirement, agenda power, and ruling coalition size are three institutional variables that should enter an empirical specification independently as well as interacted. Moreover, the effects of the last two are not unambiguously positive but depend on the presence of the confidence requirement.

## 5. IMPLICATIONS FOR THE COMPARATIVE STUDY OF LEGISLATURES

In this section, we state our model's testable hypotheses that go beyond success rates and discuss additional implications of our analysis.

### 5.1. *Empirical implications beyond success rates*

The model generates other interesting testable hypotheses. We explore five additional variables: the trend and variance of legislative success over the legislative session; the incidence of targeted transfers ("pork") across political systems; and the quantity and substance of government-endorsed legislation.

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**5.1.1. Trend and variance.** How does legislative success vary over the electoral horizon? For presidential systems, our model predicts no correlation between legislative success and the electoral horizon. This is due to the stationarity of equilibrium behaviour (see Proposition 2). Intuitively, the policy process is driven by short-term issue-by-issue incentives because there are only short-term consequences of an unsuccessful proposal. In parliamentary systems, on the other hand, the failure of a policy proposal can lead to a change in the composition of the governing coalition. This injects political incentives in the policy process whereby coalition members consider both their short-term policy interests and their long-term political interest *i.e.* keeping the coalition together. Moreover, the political incentives are stronger the further away is the next election since this increases the value of belonging to the governing coalition. Therefore, the model predicts that legislative success in parliamentary governments should decrease as the next regularly scheduled election draws nearer. This finding bears a striking similarity to a related finding of increasing hazard rates for cabinets in parliamentary democracies (*e.g.* Warwick, 1994, Diermeier and Stevenson, 1999, 2000).[27]

Second are testable hypotheses about the variance in legislative success. Our model implies that at any point in time, the variance in legislative success should be higher in presidential systems than in parliamentary systems (Proposition 4 (iii)). Parliamentary systems reduce the uncertainty in legislative votes, especially at the beginning of a legislative session. Incidentally, note how the time series in Figures 1 and 2 and the histograms in Figure 3 are consistent with this hypothesis. Over time, the variance of legislative success is trendless in presidential democracies but increasing closer to the upcoming elections in parliamentary democracies. These results follow directly from Propositions 2 and 4.

**5.1.2. Targeted Transfers ("Pork").** As discussed above, the policy issue in our model can be interpreted as transfers made by the agenda setter to legislators' districts to shore up support for a particular piece of legislation. Based on this interpretation, our model predicts that presidential systems lead to larger transfers. This is because the persistent uncertainty about available votes is mitigated by agenda setters with targeted benefits. In a parliamentary system where political incentives are stronger than policy incentives, agenda setters can rely on ruling coalition members' support without the need to deploy large transfers to buy their votes.[28]

The preponderance of targeted transfers in presidential systems has been explained in other ways. Persson, Roland and Tabellini (2000) argue that legislators in parliamentary systems face a weaker distributional conflict than legislators in presidential systems because they have a common interest in keeping the governing coalition together. Thus, parliamentary legislatures stimulate collective action, while presidential legislatures are more parochial. Ashworth and Bueno de Mesquita (2006) argue that "the presidential system leads to greater provision of constituency service because the president's role in determining national policy causes voters to focus more on local concerns when choosing their legislator." (p. 176) Despite its apparent theoretical

27. The two phenomena, however, are different. In this paper we are interested in legislative success rates, not government survival rates. Of course, lack of legislative success and cabinet survival may be highly correlated. In our model, for example, the hazard rates for cabinets will indeed increase due to the linkage created by the confidence requirement. This is due to the fact that the value of being in government is decreasing as the next election approaches. So proposers are more willing to "risk" a governmental collapse. However, this finding should be confirmed by integrating our model with the cabinet duration models found in the literature.

28. Strictly speaking, in the model, the amount of pork is normalized to one in both systems. However, it seems more natural to interpret $1 - x_t^i$ as the agenda setter's "budget constraint" for pork, and his offers $\hat{\mathbf{b}}^{-i}$ as the pork he needs to hand out to grease the legislative wheels.

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robustness, the evidence for this prediction has been hard to find, due to both measurement and identification issues (see Persson and Tabellini, 2003).[29]

**5.1.3. Legislative output.** The model also has implications for legislative output. First, legislative *productivity*—the number of bills passed—is higher under parliamentarism as long as election results ease the formation of majority coalition governments. This is because of its correlation with success: more success implies that more bills introduced by the government pass. Second, our model predicts that executive control over the *content* of legislation is higher under parliamentarism as well. This is especially true at the beginning of the legislative session where the incentives to preserve the ruling coalition are stronger. Our prediction contrasts with the often-voiced argument claiming that due to its more hazardous political position a parliamentary government is more "careful" in proposing legislation, to avoid a legislative defeat (Heller, 2001). In our model, a majority parliamentary government is both stable and effective in pushing through its agenda—without the need to compromise on policy goals.

### 5.2. *Further issues*

**5.2.1. The issue of commitment.** The key difference between the parliamentary and presidential model lies in the shared expectation that a failed bill will lead to the collapse of the government. In parliamentary systems, this expectation is sustained by an institutionalized commitment device: the vote of confidence procedure. One may ask, however, why governing coalitions in presidential systems cannot replicate such commitment endogenously by repeated interaction, formally modelled as an infinitely repeated game. While creating such a model may be possible, one should note that sustaining a commitment equilibrium will depend on various factors such as the frequency of interaction, the equilibrium punishment, etc. that may or may not be present, while the vote of confidence procedure is constitutionally available.[30]

**5.2.2. Divided government.** The model directly implies that switches from unified to divided government or vice versa should at most exercise a moderate effect on legislative success (by Proposition 3). A unified Congress should have no more success in passing its laws than a divided one. Note that the "dependent" variable here is legislative success rates as in Edwards, Barrett and Peake (1997), not lack of legislative productivity (as in Mayhew, 1991) or "gridlock" as in Krehbiel (1998). Similarly, changes in the partisan composition of Congress, committee control, or party leadership should exercise only a modest effect.

**5.2.3. Parties versus coalitions.** It is a common misunderstanding to attribute legislative success to party discipline. This becomes clear once we compare presidential and parliamentary systems that share the same electoral rule, such as Argentina and Germany (see Figure 3 and Table 3). Both use closed-list proportional representation and have high levels of voting discipline *within* parties, yet very different levels of legislative success. The misunderstanding is based on a confusion between parties and coalitions; it frequently stems from a sole focus on countries with plurality elections that encourage two-party systems (like the U.K. and the U.S.). Any purely party-based explanation necessarily fails to account for the existence of cohesive,

29. Cain, Ferejohn and Fiorina (1987) do find that U.S. congressmen exert significantly more effort on constituency service than MPs in the U.K.

30. Constructing such a model may be instructive to study the ups and downs of legislative success in presidential systems or to explain variation across presidential systems.

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TABLE 3
*Party systems and legislative success*

| | Presidential | Parliamentary |
|---|---|---|
| Proportional Representation (little intra-party competition) | • disciplined, multiple parties<br>• low legislative success<br>*Argentina* | • disciplined, multiple parties<br>• high legislative success<br>*Germany* |
| Plurality Rule (substantial intra-party competition) | • weak discipline, two parties<br>• low legislative success<br>*U.S.* | • weak discipline, two parties<br>• high legislative success<br>*U.K.* |

successful, and multi-party coalitions that will nevertheless compete against each other in the next election.

The model does provide an explanation for high levels of intra-party discipline in Britain's House of Commons compared to the U.S. Congress, despite the fact that both countries use the same plurality electoral system. This discipline, however, originates in legislative, not electoral, incentives. According to the logic of the model coalition-preserving incentives are powerful enough to dominate MPs' incentives to follow district-specific interests. Note that this also creates incentives to compete on a common electoral platform.[31] These political incentives are more muted in the U.S. Congress.[32]

**5.2.4. German Bicameralism—a natural experiment.** An interesting natural experiment for testing the implications of the model is provided by the German Constitution. According to this document, bills are to be considered according to one of two different procedures. Which procedure applies depends on the content of the bill *e.g.* whether bills have fiscal consequences for the German states; in borderline cases, the German Supreme Court decides which procedure is constitutional. According to the first procedure, the lower house (*Bundestag*) can unilaterally pass the bill by simple majority (the upper house can at most delay passage). According to the second procedure, the upper house (*Bundesrat*) can veto the lower house's bill.[33] The lower house can override this veto, but only with the same majority that was used in the veto of the original proposal *i.e.* if the upper house rejected the lower house's bill by a 2/3 margin, the upper house needs to muster a 2/3 margin as well to override the veto.

Given the distribution of state government coalitions (many of which contain the federal opposition party) that make up the upper chamber, overrides are usually not an effective option, which leaves the upper house with a virtual veto. Since the government is only accountable to the lower house, the logic of the confidence requirement rendered above would predict higher success rates for bills introduced according to the first procedure. Indeed, the average gap in government success between the two procedures is about 10 percentage points (Schindler, 1994).

## 6. CONCLUSION

This paper explores the logic of the confidence requirement, a constitutional feature of parliamentary governments, to understand differences in legislative effectiveness across political

31. Of course, such an account would need to be modelled explicitly, where the legislative model proposed here could serve as a building block.

32. As an application of this logic, our model predicts that the current Conservative—Liberal Democrat coalition in the U.K. should have similar success rates as previous one-party governments.

33. Most federal taxation measures are considered under the second procedure.

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systems. In the process, it generates a solution to puzzling empirical observations on legislative success rates. On the one hand within a country, most famously the United States, neither institutional differences nor significant shifts in the distribution of seats seem to play a role in explaining legislative success. On the other hand, there is large cross-country variation in legislative success rates between presidential and parliamentary governments.

We suggested an institutional explanation to account for these differences. Our model sheds new light on the nature of legislative policy making under presidentialism and parliamentarism. The key insights are (i) the confidence requirement alters the balance between policy and political incentives to reduce the uncertainty in legislative support for the government's legislative initiatives and (ii) government agenda power and majority control have system-dependent effects once dynamic incentives are factored in. We then discussed the empirical implications of these findings. In particular, we showed that the model can explain both the null findings within systems and the significant cross-country differences in legislative success between presidential and parliamentary systems. The model also yields new predictions. For example, we predict a higher variance in legislative success rates in presidential systems as well as differences in legislative output.

While our analysis can reconcile the puzzling empirical findings that motivated this paper, it needs to be subjected to more comprehensive empirical tests. A major hurdle for conducting empirical tests of our theory is the lack of reliable cross-country data on legislative success rates. We hope that current data collection efforts such as the VoteWorld Project[34] will help resolve this difficulty.

## APPENDIX

*Proof of Proposition* 1.

The goal of this proposition is to characterize legislators' policy incentives in the presence of agenda power. We first look at equilibrium outcomes for a known policy issue and then derive equilibrium properties *ex ante*, before an issue arises.[35] The agenda setter's problem is

$$\hat{\mathbf{b}}(x^i) = \arg\max[x^i + (b^i - x^i)\mathbb{P}\{S|X^i = x^i\}], \tag{A.1}$$

where success is the event that a majority supports the proposal: $S = \bigcup_{P\subset N}\bigcap_{j\in P}\{b^j \geq X^j\}$, where $P$ is a subset of at least $\frac{n}{2}$ legislators other than the agenda setter.

If we denote the maximal success probability for a given proposal by

$$\sigma(b^i, x^i) = \max_{\mathbf{b}^{-i}} \mathbb{P}\{S|X^i = x^i\}, \tag{A.2}$$

then the agenda setter proposes to retain for himself a share:

$$\hat{b}^i(x^i) = \arg\max[x^i + (b^i - x^i)\sigma(b^i, x^i)]. \tag{A.3}$$

If the agenda setter already has guaranteed support in the legislature ($x^i = 1$), then he can make no payouts and still have the bill pass. If legislative support is not guaranteed ($x^i < 1$), the agenda setter can still guarantee himself a pay-off of $x^i$ by proposing a bill with $b^i = x^i$. Whether the bill passes or not, he gets $x^i$. Can he do better for himself? The agenda setter faces a trade-off between extracting a larger rent and increasing his success probability. This trade-off is characterized by the first-order condition for problem (A.3):

$$\begin{aligned}\sigma(b^i, x^i) + (b^i - x^i)\frac{\partial}{\partial b^i}\sigma(b^i, x^i) &= 0 \text{ if } b^i > 0 \\ &\leq 0 \text{ if } b^i = 0.\end{aligned} \tag{A.4}$$

34. See http://voteworld.berkeley.edu/.

35. The *ex ante* properties of equilibrium will matter when we move on to the dynamic setting.

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The setter can do better for himself by extracting a rent ($b^i > x^i$) as long as there is a positive chance of success. There do exist bills with these two properties. One is where the setter retains everything for himself but an infinitesimal $\varepsilon > 0$ which he spreads over a majority (minus one). The handouts can be made small enough that the setter raises his share from $x^i$, and yet, by full support, there remains a positive chance that the compensated majority members' reservation values are all below $\frac{\varepsilon}{\frac{n}{2}}$. Conclusion: if $x^i < 1$, the equilibrium bill extracts a rent for the setter, $\hat{b}^i(x^i) > x^i$, passes with positive probability and so gives the setter an expected pay-off larger than his reversion value $x^i$. The equilibrium success probability $\hat{\sigma}(x^i) = \sigma(\hat{b}^i, x^i)$ is positive: $\hat{\sigma}(x^i) > 0$ for $x^i < 1$.

Can the agenda setter guarantee the success of a bill? Only if he already has the support of a majority ($x^i = 1$). If he does not ($x^i < 1$), then we will show that there is always uncertainty about whether the equilibrium bill has sufficient support: $\hat{\sigma}(x^i) < 1$.

When $x^i < 1$, the equilibrium bill extracts a positive rent for the agenda setter. This means that the sum of bill payouts is not sufficient to cover the sum of reversion values. By full support, there is always a chance that a majority will not be fully satisfied with the bill. For instance, even if the setter targets a majority (minus one) with the remaining share, it is always possible that this majority happens to be the most expensive and the remaining minority also do not accept a bill that gives them zero because their reversion values are just a notch ($\varepsilon > 0$) above zero.

*Ex ante*, before a policy issue arises, a legislator's expected pay-off depends on the agenda process. In the absence of agenda power (*e.g.* open rule), every legislator expects to be compensated $\frac{1}{n+1}$ to support any piece of legislation. If only one legislator has agenda power, however, he expects to make more than the average $\frac{1}{n+1}$, whereas the rest of legislators expect to make less than average. This claim follows from the observation that the sum of expected pay-offs has to equal one $\pi^i + n\pi^j = 1$, where

$$\begin{aligned}\pi^i &= \int_{S\cap\{X^i<1\}} \hat{b}^i(X^i)\, d\mathbb{P} + \int_{S\cap\{X^i=1\}} \hat{b}^i(X^i)\, d\mathbb{P} + \int_{\Omega\setminus S} X_i\, d\mathbb{P} \\ &> \int_{\Omega} X_i\, d\mathbb{P} = \frac{1}{n+1} \end{aligned} \tag{A.5}$$

because $\hat{b}^i(X^i) > X^i$ ($= X^i$ iff $X^i = 1$).

The *ex ante* success probability is also between zero and one because: (i) every equilibrium bill with $x^i < 1$ has a positive chance of success and also of failure, and (ii) policy issues with uncertain legislative support ($x^i < 1$) come up with positive probability, by full support of the distribution of reversion allocations. ‖

*Proof of Proposition* 2.

In a policy period $t$, legislators vote on the current proposal by taking into account current pay-offs $s_t^j$ as well as future expected pay-offs $V_t^j$. However, future expected pay-offs are the same whether the bill passes (success $S_t$) or fails (failure $\Omega \setminus S_t$):

$$V_t^j(S_t) = V_t^j(\Omega \setminus S_t) = \begin{cases} (t-1)\left(\frac{1}{c}\pi^i + \frac{c-1}{c}\pi^j\right) & \text{if } j \in G, \\ (t-1)\pi^j & \text{if } j \in O, \end{cases} \tag{A.6}$$

where $G$ and $O$ are the sets of government and opposition legislators, respectively. Thus, only current period pay-offs are factored into voting decisions.

(i) Given this voting behaviour, the agenda setter's uncertainty about his legislative support is as in Proposition 1. Ruling coalition members are as likely to support the proposal as opposition members. The agenda setter's proposal takes into account his current and future expected pay-offs as well as his success probability. Since his future expected pay-offs do not depend on the bill's fate either, his equilibrium proposal depends only on current policy pay-offs, as characterized in Proposition 1. Therefore, $\hat{b}_t^i(x^i) = \hat{b}^i(x^i)$ and $\hat{\sigma}_t(x^i) = \hat{\sigma}(x^i)$ for all $t \geq 1$. Policy coalitions are independent of the ruling coalition and over time.

(ii) Legislative success remains uncertain every period, and is independent of success in other periods, because it is driven by overall support over that specific policy issue. Over all issues, legislative success equals the *ex ante* success probability in each period: $\frac{1}{T-1}\sum_{t=1}^{T-1}\hat{\sigma}_t = \frac{1}{T-1}\sum_{t=1}^{T-1}\hat{\sigma} = \hat{\sigma}$, which, by Proposition 1, is interior $0 < \hat{\sigma} < 1$. ‖

*Proof of Proposition* 3.

The effect of agenda power can be identified by looking at a slight modification of the model. Suppose that each of the $T-1$ policy periods can be of one of two types: government-controlled agenda and open agenda. When the government sets the agenda, only members of the ruling coalition are recognized to make proposals. If the agenda is open, any legislator can be recognized. It is immediately apparent that this variation in the government's agenda power

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has no effect on the government's legislative success rate. Policy making is based on issue-by-issue incentives whether the agenda is under government control or not. The same holds true for variations in ruling coalition size. Whether the government is in minority $\left(1 \leq c \leq \frac{n}{2}\right)$ or in majority $\left(\frac{n}{2}+1 \leq c \leq n+1\right)$ has no impact on its legislative success rate. ‖

*Proof of Proposition 4.*

(i) The proof of the first part is by mathematical induction. We establish two claims:

(C1) If $T=2$, then a minority coalition is not allowed to govern.
(C2) If a minority coalition is not allowed to govern at $T$, then it is not allowed to govern at $T+1$ either.

(i)(C1) By Proposition 1 in the last policy period $t=1$, an agenda setter $i$ does better than average and an ordinary legislator does worse than average: $\pi^j < \frac{1}{n+1} < \pi^i$. Continuation values at $T=2$ for government and opposition members are

$$V_2{}^{\mathrm{G}} = \frac{1}{c}\pi^i + \frac{c-1}{c}\pi^j \left(> \frac{1}{n+1}\right), \tag{A.7}$$

$$V_2{}^{\mathrm{O}} = \pi^j \left(< \frac{1}{n+1}\right), \tag{A.8}$$

which implies that the majority opposition prefers the reversion allocation at $t=1$ to a minority coalition.

(i)(C2) Assume that a minority coalition is not allowed to govern at $T$. Therefore, either $V_T{}^{\mathrm{O}} < \frac{T-1}{n+1} < V_T{}^{\mathrm{G}}$ or $V_T{}^{\mathrm{G}} = V_T{}^{\mathrm{O}} = \frac{T-1}{n+1}$. Suppose, now, that the game starts at $T+1$ with a minority ruling coalition. Suppose, by contradiction, that the minority coalition obtains the confidence of a majority. Then $T$ is a policy period with a minority governing coalition. There are three possible equilibrium outcomes in policy period $T$.

First, $V_T{}^{\mathrm{O}} < \frac{T-1}{n+1} < V_T{}^{\mathrm{G}}$ and with positive probability, a majority supports the bill. Then, by Proposition 1, it must be that the agenda setter is better off than average starting at $T$ since otherwise he will choose to step down: $V^i_{T+1} > \frac{T}{n+1}$. Also, ruling coalition members $j \in G$ have to be better off on average since they are cheaper to buy off than opposition members $k \in O$, and so their support is sought first: $V^j_{T+1} \geq V^k_{T+1}$. At $T+1$ continuation values are

$$V_{T+1}{}^{\mathrm{G}} = \frac{1}{c}V^i_{T+1} + \frac{c-1}{c}V^j_{T+1}, \tag{A.9}$$

$$V_{T+1}{}^{\mathrm{O}} = V^k_{T+1}, \tag{A.10}$$

which implies that $V_{T+1}{}^{\mathrm{O}} < \frac{T}{n+1} < V_{T+1}{}^{\mathrm{G}}$, so that at $T+1$, there is majority opposition to giving confidence to the minority ruling coalition. Contradiction.

Second, $V_T{}^{\mathrm{O}} < \frac{T-1}{n+1} < V_T{}^{\mathrm{G}}$ and no majority opposition member can be brought on board at $T$ because their NCV is too negative. Then at $T+1$, the majority opposition is indifferent between allowing the ruling minority to govern (and defeating it next period) and triggering a reorganization now. By Assumption 4, the second alternative is chosen. Contradiction.

Third, $V_T{}^{\mathrm{G}} = V_T{}^{\mathrm{O}} = \frac{T-1}{n+1}$. Then policy incentives at $T$ are identical to policy incentives at $t=1$. By Proposition 1, we know that expected pay-offs at $T$ have the property that the agenda setter is better off $\pi^j < \frac{1}{n+1} < \pi^i$. At $T+1$ continuation values are

$$V_{T+1}{}^{\mathrm{G}} = \left(\frac{1}{c}\pi^i + \frac{c-1}{c}\pi^j\right) + \left[V_T{}^{\mathrm{G}}\mathbb{P}\{S_T\} + \frac{T-1}{n+1}(1-\mathbb{P}\{S_T\})\right], \tag{A.11}$$

$$V_{T+1}{}^{\mathrm{O}} = \pi^j + \left[V_T{}^{\mathrm{O}}\mathbb{P}\{S_T\} + \frac{T-1}{n+1}(1-\mathbb{P}\{S_T\})\right], \tag{A.12}$$

which implies that $V_{T+1}{}^{\mathrm{O}} < \frac{T}{n+1} < V_{T+1}{}^{\mathrm{G}}$, so that at $T+1$, there is majority opposition to giving confidence to the minority ruling coalition. Contradiction.

Parts (ii) and (iii) of this proposition are established in two steps. First, we show that ruling coalition members gain more the longer their majority coalition is in power. Second, we show that equilibrium legislative success goes up in government members' NCV when this is large enough.

**Step 1.** *NCVs of government members go up in the length of the legislative session. At $t=1$, the agenda setter's problem is*

$$\hat{\mathbf{b}}_1(x^i_1) = \arg\max[x^i_1 + (b^i_1 - x^i_1)\mathbb{P}\{S_1|X^i_1 = x^i_1\}], \tag{A.13}$$

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*which gives the agenda setter an expected pay-off above average and the rest of the legislators an expected pay-off below average:* $\pi_1^j < \frac{1}{n+1} < \pi_1^i$. *At the end of period* $t = 2$, *government members expect to be better off than average:*

$$V_2{}^{\mathrm{O}} < \frac{1}{n+1} < V_2{}^{\mathrm{G}} \leq \frac{1}{c} \tag{A.14}$$

*since in equilibrium* $c \geq \frac{n}{2} + 1$.

*At* $t = 2$, *the agenda setter's problem is*

$$\hat{\mathbf{b}}_2(x_2^i, \Delta_2{}^{\mathrm{G}}) = \arg\max\left[\left(x_2^i + \frac{1}{n+1}\right) + (b_2^i + \Delta_2{}^{\mathrm{G}} - x_2^i)\mathbb{P}\{S_2|X_2^i = x_2^i\}\right], \tag{A.15}$$

*where* $\Delta_2{}^{\mathrm{G}} > 0$ *is the NCV of the agenda setter. By Assumption 3, equilibrium success is at least as high* $\hat{\sigma}_2 \geq \hat{\sigma}_1$. *Note that since ruling coalition members get a positive benefit just from keeping the ruling coalition in place, their support is cheaper to buy and so only they get positive offers. This has implications for continuation values at the end of period* $t = 3$:

$$V_3^{\mathrm{G}} = \left(\frac{1}{c} + V_2^{\mathrm{G}}\right)\hat{\sigma}_2 + \frac{2}{n+1}\left(1 - \hat{\sigma}_2\right) \tag{A.16}$$

$$V_3{}^{\mathrm{O}} = V_2{}^{\mathrm{O}}\hat{\sigma}_2 + \frac{2}{n+1}(1 - \hat{\sigma}_2), \tag{A.17}$$

*thus opposition members always vote against any bill that does not compensate them.*

*Are ruling coalition members cheaper at* $t = 3$ *as well? They are not only cheaper than opposition members at* $t = 3$, *but they are cheaper than coalition members at* $t = 2$. *To see this, compute the NCV of a government member at* $t = 3$:

$$\begin{aligned}\Delta_3^{\mathrm{G}} = V_3^{\mathrm{G}} - \frac{2}{n+1} &= \left[\left(\frac{1}{c} - \frac{1}{n+1}\right) + \left(V_2^{\mathrm{G}} - \frac{1}{n+1}\right)\right]\hat{\sigma}_2 \\ &> \left[E\left(\hat{B}_1\right) - \frac{1}{n+1}\right]\hat{\sigma}_1 \geq V_2^{\mathrm{G}} - \frac{1}{n+1} = \Delta_2^{\mathrm{G}}\end{aligned} \tag{A.18}$$

*using (A.14) and* $\hat{\sigma}_2 \geq \hat{\sigma}_1 > 0$ *from Proposition 1 and Assumption 3. Since* $\Delta_3{}^{\mathrm{G}} > \Delta_2{}^{\mathrm{G}}$ *majority support at* $t = 3$ *is stronger than at* $t = 2$. *By Assumption 3, equilibrium success is at least as large* $\hat{\sigma}_3 \geq \hat{\sigma}_2$.

*We generalize to any policy period* $t$ *using mathematical induction on the number of remaining policy periods. Assume that* $\Delta_t{}^{\mathrm{G}} > \Delta_{t-1}{}^{\mathrm{G}}$. *By Assumption 3, equilibrium success cannot go down* $\hat{\sigma}_t \geq \hat{\sigma}_{t-1}$ *and so, moving on to period* $t + 1$ *we find that*

$$\begin{aligned}\Delta_{t+1}^{\mathrm{G}} &= \left[\left(\frac{1}{c} - \frac{1}{n+1}\right) + \Delta_t^{\mathrm{G}}\right]\hat{\sigma}_t \\ &> \left[\left(\frac{1}{c} - \frac{1}{n+1}\right) + \Delta_{t-1}^{\mathrm{G}}\right]\hat{\sigma}_{t-1} = \Delta_t^{\mathrm{G}}\end{aligned} \tag{A.19}$$

*which establishes that the sequence of NCVs denoted* $(\Delta_t{}^{\mathrm{G}})_{t=1,2,\ldots}$ *is a strictly increasing sequence.*

**Step 2.** *Equilibrium legislative success goes up in government members' NCV when this is large enough. In each period* $t$, *the agenda setter's problem boils down to (time subscripts omitted)*

$$\hat{b}(x, \Delta) = \arg\max[(b + \Delta - x)\sigma(b, x, \Delta)], \tag{A.20}$$

*where* $\frac{\partial}{\partial b}\sigma(b, x, \Delta) < 0$ *and* $\frac{\partial}{\partial \Delta}\sigma(b, x, \Delta) > 0$. *The first-order condition for this problem is*

$$\begin{aligned}\sigma(b, x, \Delta) + (b + \Delta - x)\frac{\partial}{\partial b}\sigma(b, x, \Delta) &= 0, \quad \textit{for } b > 0, \\ &\leq 0, \quad \textit{for } b = 0.\end{aligned} \tag{A.21}$$

*Denote equilibrium legislative success by* $\hat{\sigma}(x, \Delta)$. *The change in equilibrium success caused by an increase in the NCV is*

$$\begin{aligned}\frac{\partial}{\partial \Delta}\hat{\sigma}(x, \Delta) &= \frac{\partial}{\partial b}\sigma(\hat{b}, x, \Delta)\frac{\partial}{\partial \Delta}\hat{b}(x, \Delta) + \frac{\partial}{\partial \Delta}\sigma(\hat{b}, x, \Delta) \\ &= -\frac{\hat{\sigma}(x, \Delta)}{\hat{b} + \Delta - x} + \frac{\partial}{\partial \Delta}\sigma(\hat{b}, x, \Delta).\end{aligned} \tag{A.22}$$

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An increase in majority support has two effects. The direct effect $\frac{\partial}{\partial \Delta}\sigma(\hat{b}, x, \Delta) > 0$ is that it improves the prospects for success of a *given* bill since ruling coalition members lose in the long run from a legislative failure and so are now "cheaper" to bring on board. The indirect effect $-\frac{\hat{\sigma}(x,\Delta)}{\hat{b}+\Delta-x} < 0$ is that the setter may choose to be opportunistic and "cash in" some of this windfall support by retaining more benefits $b$ and thus reducing success. Overall, the effect on success can be zero. However, as the agenda setter's NCV becomes larger, the indirect effect shrinks. Success becomes more and more important because the agenda setter can benefit from the high rent of being part of the ruling coalition in the future. In other words, long-term political incentives start to dominate short-term policy incentives and the executive optimally pursues higher success. ‖

*Proof of Proposition* 5.

(i) Increasing agenda power by increasing the number of periods with government monopoly of the agenda increases government members' NCVs, and with it, by equation (A.22), equilibrium success.
(ii) Increasing the size of the ruling coalition has the opposite effect on success. We show that the sequence of government NCVs decreases. Then, by equation (A.22), equilibrium success probability is lower each period.

$$\Delta_2{}^{\mathrm{G}} = \left(\frac{1}{c}\pi_1^i + \frac{c-1}{c}\pi_1^j\right) - \frac{1}{n+1} \quad \text{decreasing in } c \text{ (therefore } \hat{\sigma}_2 \text{ at most as large)},$$

$$\Delta_3{}^{\mathrm{G}} = \left(\frac{1}{c} - \frac{1}{n+1}\right) + \Delta_2{}^{\mathrm{G}}\hat{\sigma}_2 \quad \text{decreasing in } c \text{ (therefore } \hat{\sigma}_3 \text{ at most as large)},$$

$$\vdots$$

$$\Delta_{t+1}{}^{\mathrm{G}} = \left(\frac{1}{c} - \frac{1}{n+1}\right) + \Delta_t{}^{\mathrm{G}}\hat{\sigma}_t \quad \text{decreasing in } c.$$

Each NCV is strictly smaller with a larger coalition size. In the extreme case $c = n+1$ (grand coalition), NCVs are zero, so there is no variation in success across periods, just like in the presidential game. ‖

*Proof of Proposition* 6. Follows directly from Propositions 2–5. ‖

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**Supplementary Material**

Supplementary material are available at Review of Economic Studies online.

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